

#	Case Name	Tentative
		practices....” (<i>South Bay Chevrolet v. General Motors Acceptance Corp.</i> (1999) 72 Cal.App.4th 861, 886-887.) Plaintiffs UCL claim rests on the same allegations underlying their other causes of action. Given that the demurrer to the first cause of action has been sustained, the demurrer to this cause of action should also be sustained as Plaintiff has not alleged unlawful conduct for purposes of the UCL. Plaintiff’s allegation that Defendant’s “failure to provide accurate payment information, misdirection of payments, imposition of unwarranted fees, and pursuit of foreclosure based on a default it created” was “immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers” is not supported by any factual allegations. Accordingly, the demurrer to the fifth cause of action is SUSTAINED. Sixth Cause of Action – Declaratory and Injunctive Relief Injunctive and declaratory relief are equitable remedies, not causes of action. (<i>Faunce v. Cate</i> (2013) 222 Cal.App.4th 166, 173.) A demurrer to causes of action for injunctive and declaratory relief will be sustained where such causes of action are “wholly derivative of other nonviable causes of action.” (Ibid.) Because the demurrer to the other causes of action has been sustained, Plaintiffs have not demonstrated they are entitled to such relief. Accordingly, the demurer to the sixth cause of action is SUSTAINED. The demurrer is SUSTAINED in its entirety with leave to amend. Plaintiffs have 15 days leave to amend the Complaint. Moving party shall give notice of this ruling.
57.		
58.	TALG, LTD. v. Ton 2026- 01552440	Plaintiffs TALG, Ltd. and Tenny C. Rostomian-Amin’s unopposed Motion to Strike Certain Portions of Defendant Alessandria Jones Ton’s Second Answer is GRANTED. (C.C.P. § 436.) Plaintiffs seek to strike the following the following portions from the Second Answer. (ROA 37.)

#	Case Name	Tentative
		1. The Fifth Affirmative Defense, entitled "ANTI-SLAPP – CCP § 425.16," including Defendant's requests for dismissal of the Complaint, a determination that Plaintiffs cannot establish a probability of prevailing, and attorney's fees and costs under Code of Civil Procedure section 425.16; 2. The Sixth Affirmative Defense, to the extent it alleges that Plaintiffs failed to plead actual malice, that Plaintiffs' allegations are conclusory, or that Plaintiffs cannot satisfy an essential element of their claims; 3. The Seventh Affirmative Defense, entitled "TRADE LIBEL – FAILURE TO PLEAD SPECIAL DAMAGES," to the extent it alleges that Plaintiffs failed to identify lost clients, transactions, quantified damages, or special damages; and 4. The Eighth Affirmative Defense, entitled "PRIVILEGE – CIVIL CODE § 47," because it does not allege facts showing that the alleged public Yelp publication was made in a legislative proceeding, judicial proceeding, official proceeding authorized by law, or in the initiation or course of another qualifying proceeding. Plaintiff has properly established that the subject language should be stricken under C.C.P. § 436 as either (a) improper or (b) not drawn in conformity with law. As it relates to the Fifth Affirmative Defense, defendant must file a separate motion under C.C.P. § 425.16 (which defendant has done—see ROA 44). Defendant has not opposed the motion to strike. Failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 ("By failing to argue the contrary, plaintiffs concede this issue").) Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. (Rules of Court, Rule 3.1113(a).) Accordingly, the motion is GRANTED with 15 days leave to amend related to the Sixth, Seventh, and Eighth Affirmative Defenses, and GRANTED WITHOUT LEAVE to amend as to the Fifth Affirmative Defense. The case management conference is continued to February 1, 2027 at 9:00 a.m. in Department C28. Plaintiffs shall give notice of this ruling.

#	Case Name	Tentative
59.	Contreras v. Cotty Foods Corporation 2026-01568744	Defendant Cotti Foods Corporation's Motion to Quash Service of Summons and Complaint is GRANTED. (Code Civ. Proc. §418.10.) A motion to quash is available where the plaintiff has not achieved valid service of summons on a defendant because until valid service of a valid summons has been made, the court lacks jurisdiction over the defendant. (See Code Civ. Proc. §418.10, subd. (a)(1); see also <i>Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371.) When a defendant moves to quash service, the burden is on the plaintiff to establish jurisdiction by a preponderance of the evidence. (<i>School Dist. of Okaloosa County v. Superior Court</i> (1997) 58 Cal.App.4th 1126, 1131.) Plaintiff has failed to establish that the summons and complaint were served upon defendant in compliance with the requirements of Code Civ. Proc. §415.10, et seq. Plaintiff's proof of service of summons has errors and inconsistencies. It appears from what plaintiff has filed that the only attempt at service of process has been by mailing the summons and complaint to defendant. Code Civ. Proc. §415.30 provides the requirements that must be followed in order to serve a defendant with the summons and complaint via mail. Plaintiff has failed to show compliance with Code Civ. Proc. §415.30. Additionally, the summons filed and issued on 5/11/26 (ROA 2) improperly identifies Julieta Contreras as a Defendant and Cotti Foods Corporation as the Plaintiff. Plaintiff shall file an amended summons that corrects the defects in the currently issued summons. Plaintiff shall then serve defendant in a manner consistent with Code Civ. Proc. §§ 415.10, 415.20, or 415.30 and file a valid proof of service of summons. Plaintiff is encouraged to consult with the court's self-help desk. Moving defendant shall provide notice of this ruling.
60.		
61.	TandP LLC v. Evolve Bank & Trust	Defendant Luqra, LLC's motion for judgment on the pleadings is DENIED.